

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Metropolitan Police Act, 1860	23 & 24 Vict. c. 135.
Explosives Act, 1875	38 & 39 Vict. c. 17.
Public Stores Act, 1875	38 & 39 Vict. c. 25.
Sea Fisheries Regulation Act, 1888	51 & 52 Vict. c. 54.
Military Lands Act, 1892	55 & 56 Vict. c. 43.
Burgh Police (Scotland) Act, 1892	55 & 56 Vict. c. 55.
Public Authorities Protection Act, 1893	56 & 57 Vict. c. 61.
Public Health (Ireland) Act, 1896... ..	59 & 60 Vict. c. 54.
Public Health (Scotland) Act, 1897	60 & 61 Vict. c. 38.
Burgh Police (Scotland) Act, 1903	3 Edw. 7. c. 33.
Official Secrets Act, 1911	1 & 2 Geo. 5. c. 28.
Special Constables Act, 1923	13 & 14 Geo. 5. c. 11.
Salmon and Fresh Water Fisheries Act, 1923	13 & 14 Geo. 5. c. 16.
Public Health Act, 1936	26 Geo. 5. & 1 Edw. 8. c. 49.
Limitation Act, 1939	2 & 3 Geo. 6. c. 21.
Ministry of Supply Act, 1939	2 & 3 Geo. 6. c. 38.
Acquisition of Land (Authorisation Procedure) Act, 1946.	9 & 10 Geo. 6. c. 49.
Atomic Energy Act, 1946	9 & 10 Geo. 6. c. 80.
Acquisition of Land (Authorisation Procedure) (Scotland) Act, 1947.	10 & 11 Geo. 6. c. 42.
Emergency Laws (Miscellaneous Provisions) Act, 1947.	11 & 12 Geo. 6. c. 10.
Radioactive Substances Act, 1948	11 & 12 Geo. 6. c. 37.
Patents Act, 1949	12, 13 & 14 Geo. 6. c. 87.
Rivers (Prevention of Pollution) Act, 1951	14 & 15 Geo. 6. c. 64.
Income Tax Act, 1952	15 & 16 Geo. 6. & 1 Eliz. 2. c. 10.

CHAPTER 33

Pool Betting Act, 1954

ARRANGEMENT OF SECTIONS

Section

1. Promoters of pool betting to be registered.
2. Appointment, etc., of the accountant.
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4. Information to be supplied and published by registered pool promoters.
5. Duties and powers of the accountant.
6. Void competitions and rejected entries.
7. Ascertainment of stake money in competitions.
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9. Power of councils to delegate their functions.
10. Legislation of ready money pool betting carried on by post.
11. Application and interpretation of Act.
12. Application to Scotland.
13. Short title and extent.

An Act to regulate the disposal of moneys and to provide for the publication of certain accounts and information in connection with pool betting; to permit ready money bets in certain circumstances by way of pool betting conducted by post and in that connection to repeal the Ready Money Football Betting Act, 1920, and to restrict the application of the Betting Act, 1853; and for purposes connected therewith. [4th June, 1954]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Promoters of
pool betting
to be
registered.

1.—(1) No person shall carry on any business involving the receiving or negotiating of bets made by way of pool betting unless he is registered under this Act with the council of the county or county borough within which the place, or the principal place, at which he carries on that business is situate, and the registration remains in force.

A person registered as aforesaid whose registration remains in force is hereafter in this Act referred to as a "registered pool promoter", and the council with whom a registered pool promoter is or is required to be registered under this Act is hereafter in this Act referred to as "the local authority".

(2) If any person makes an application to the local authority for registration under this Act, the local authority shall, on payment of the appropriate registration fee, register him accordingly in a register to be kept by them for the purposes of this Act and notify him in writing that they have done so.

(3) Notwithstanding anything in subsection (2) of this section, the local authority may, after giving the person in question an opportunity of being heard, refuse to register a person under this section or revoke a person's registration if that person or, where that person is a corporate body, any director or manager thereof, has been convicted of any offence under this Act or of any offence involving fraud or dishonesty.

(4) If, after a person has been registered under this section, the local authority, after giving him an opportunity of being heard, are satisfied that he does not intend to carry on a pool betting business or that he has permanently ceased to carry on pool betting business or that the place or principal place at which he carries on his pool betting business will not be, or has ceased to be, in their area, they shall revoke his registration.

(5) Where registration has been refused or revoked under this section, the local authority shall forthwith notify

the person in question of the refusal or revocation, and he may appeal in accordance with the provisions of the Quarter Sessions Act, 1849, to the next practicable court of quarter sessions having jurisdiction in the county, borough or place in which the place or principal place at which he carries on or is intending to carry on his business is situate and held not less than twenty-one clear days after the giving to him of the notice of the refusal or revocation.

In any case arising under this subsection, the notice of appeal shall be given to the local authority and to the clerk of the peace, and sections seven and eight of the Summary Jurisdiction (Appeals) Act, 1933 (which prescribe the courts for the hearing of certain appeals to quarter sessions), shall apply as they apply in relation to an appeal from a court of summary jurisdiction.

(6) Where a local authority revoke a registration under this section, then, until the time within which notice of appeal under this section may be given has expired and, if such notice is duly given, until the determination of the appeal, the registration shall be deemed to continue in force, and if the court of quarter sessions confirm the decision of the local authority, the court may, if they think fit, order that the registration shall continue in force for a further period not exceeding two months from the date of the order.

(7) If a registered pool promoter dies, his registration shall, for the period of three months beginning with the date of the death, enure for the benefit of his legal personal representative.

(8) On the first day of January in the year nineteen hundred and fifty-six and every subsequent year the appropriate continuation fee shall become payable to the local authority by every person who is for the time being a registered pool promoter, and any such fee which remains unpaid after the date on which it becomes payable may be recovered by the local authority as a debt.

(9) For the purposes of this section the appropriate registration fee and the appropriate continuation fee shall be fees of such amounts respectively (not in either case exceeding fifty pounds) as may be fixed annually by the local authority for the whole of their area; and different amounts may be so fixed by any such authority in respect of businesses of different classes.

2.—(1) The local authority shall, in the case of each registered pool promoter, appoint a person, being a qualified auditor, to exercise and perform, in relation to that registered pool promoter, the powers and duties conferred and imposed by the subsequent provisions of this Act. Appointment, etc., of the accountant.

(2) The person so appointed (hereafter in this Act referred to as "the accountant") shall hold office on such terms (including terms as to remuneration) as may be determined by the local authority after consultation with the registered pool promoter.

(3) The remuneration of the accountant shall be payable by the local authority, but the remuneration paid to the accountant by the local authority shall be recoverable by the local authority as a debt due to them from the registered pool promoter.

(4) In this section "remuneration" includes any sums paid or to be paid to the accountant in respect of his expenses.

Requirements
as to conduct
of pool betting
business.

3.—(1) Subject to the provisions of this section, the pool betting business carried on by any registered pool promoter shall comply with the following requirements—

- (a) it shall take the form of the promotion of competitions for prizes for making forecasts as to sporting or other events, the bets being entries in the competitions and the winnings in respect of the bets being the prizes or shares in the prizes ;
- (b) each bet shall be an entry in a particular competition ;
- (c) the stakes and the winnings shall be wholly in money ;
- (d) in each competition, the prizes shall be equally available for all the bets and accordingly the question which bets qualify for, or for shares in, the prize or prizes and, save so far as it depends on the amounts staked, the amounts of the respective shares in the prizes, shall be determined solely by the relative success of the forecasts embodied in the respective bets ;
- (e) the total amount payable by way of winnings shall, in the case of each competition, be the total amount of the stakes in respect of entries in that competition less such percentage of that total amount as may be determined by the promoter, being the same percentage in respect of all his competitions which depend on the same events or events taking place on the same day ;
- (f) the rules applying to the competition shall be notified to the accountant before the first of the relevant sporting or other events takes place.

(2) Notwithstanding anything in paragraph (d) or paragraph (e) of subsection (1) of this section—

- (a) the rules applicable to any competition may provide that the winnings shall not, in the case of any bet, exceed a stated amount and that any resulting decrease

in the total amount payable in the case of the winning bets qualifying for, or for shares in, a prize in the competition shall be applied in increasing the amount payable in the case of the winning bets qualifying for, or for shares in, another prize, or other prizes, in that competition ;

(b) the rules applicable to any competition may provide that, in specified circumstances, one or more of the prizes shall not be paid and that the amount which would have been payable in the case of the winning bets qualifying for, or for shares in, that prize or those prizes shall be applied in increasing the amount payable in the case of the winning bets qualifying for, or for shares in, another prize or other prizes in that competition ;

(c) the rules applicable to any competition may provide—

(i) for the winnings of winning bets (being bets staking the minimum permissible under the rules of the competition) being increased or decreased (with a view to facilitating payment) by not more than sixpence ; and

(ii) consequentially, for the winnings of winning bets (being bets staking more than the said minimum) being increased or decreased by not more than a proportionately greater sum than sixpence,

and the total amount payable by way of winnings in the case of the competition may exceed or fall short of the amount specified in the said paragraph (e) to such extent as is reasonably necessary having regard to any such provision ;

(d) if it is found that a bet which ought to have been treated as a winning bet has been inadvertently overlooked, the promoter may pay to the person making that bet the sum paid by him to other persons making comparable bets or, if there are no comparable bets, such sum as may be proper, and any sum paid under this paragraph shall be left out of account for the purposes of the said paragraph (e).

(3) Nothing in paragraph (b) of subsection (1) of this section shall be construed as preventing—

(a) several bets being made by a person relating to the same competition ; or

(b) several bets (whether relating to the same competition or to different competitions) being made by a person by means of the same coupon or other entry form ;
or

- (c) the use of a formula for the purpose of making several bets and, in particular, the use for that purpose of any form of the device commonly known as a permutation.

(4) Nothing in paragraph (f) of subsection (1) of this section shall be construed as requiring, in the case of a series of competitions proposed to be held under the same rules, that those rules should be re-notified to the accountant on the occasion of each competition, and, if the rules are altered before the series is completed, it shall suffice if the alteration is notified to the accountant before any of the sporting or other events relevant to the first competition to which the alteration applies takes place.

Information to be supplied and published by registered pool promoters.

4.—(1) As soon as may be after the events to which any of his competitions relates have taken place, and in any case not later than seven days after the announcement of the results of that competition, every registered pool promoter shall send to the accountant a statement showing—

- (a) the total amount of the stakes in respect of entries in the competition ;
- (b) the total amount payable by way of winnings in that competition ;
- (c) the total amount of the stakes in respect of winning bets in the competition, and if there are more prizes than one in the competition, the total amount of the stakes in respect of winning bets qualifying for, or for shares in, each of the prizes ; and
- (d) the amount payable in respect of each winning bet or, as the case may be, of each winning bet qualifying for, or for a share of, each of the prizes, bets staking more than the minimum which is permissible under the rules of the competition being treated for the purposes of this paragraph as if they were several separate bets each staking the said minimum.

(2) Every registered pool promoter shall, not more than twenty-one days after the events to which any of his competitions relate have taken place, send to every competitor in that competition a statement of the percentage (calculated to the nearest one-tenth of one per cent.) which the first of the amounts herein-after mentioned bears to the second of those amounts, that is to say—

- (a) the aggregate total stakes in that competition and all other competitions of that promoter which depend on those events or on other events taking place on the same day, after deducting the aggregate prizes in, and the

required by the said paragraph (c) may, if the promoter so desires, be a statement that the said percentage does not exceed three per cent.

The said period is, in the case of a statement falling to be sent in the year nineteen hundred and fifty-five, the period beginning with the first day of January and ending with the thirty-first day of July in that year, and, in the case of a statement falling to be sent in any subsequent year, the twelve months ending with the thirty-first day of July in that year; and the reference in the preceding provisions of this subsection to the pool betting business of a promoter for any such period shall be construed as a reference to the pool betting business of that promoter so far as it is concerned with competitions which depend on events which take place on any day in that period.

(6) Whenever, at any time after the end of the year nineteen hundred and fifty-four, a profit and loss account of a company to which section one hundred and forty-eight of the Companies Act, 1948, applies, being a registered pool promoter, is laid before the company in general meeting in pursuance of that section, the company shall forthwith send a copy of that account and of the relevant auditor's report to the accountant.

(7) Every registered pool promoter, not being such a company as is mentioned in subsection (6) of this section, shall, at least once in every calendar year after the end of the year nineteen hundred and fifty-four, send to the accountant a profit and loss account of his pool betting business, covering, in the case of the first account, a period beginning at the end of the year nineteen hundred and fifty-four or at the commencement of the business, whichever is the later, and, in the case of subsequent accounts, a period beginning at the end of the period covered by the last account, together with a report thereon by a qualified auditor who neither is, nor is a partner of, nor is in the employment of any person who is an officer or servant of the registered pool promoter; and the Ninth Schedule to the Companies Act, 1948 (which enumerates the matters which are to be expressly stated in auditors' reports) shall, with the necessary adaptations, apply in relation to every such report.

(8) The local authority shall preserve any documents sent to them under this section for at least two years and shall deposit them at their office and permit any member of the public to inspect them during office hours free of charge.

Duties and
powers of the
accountant.

5.—(1) The accountant shall—

- (a) examine all statements submitted to him under the last preceding section with a view to determining whether there is cause to believe that any of the provisions of

this Act are being contravened or not complied with in relation to the competition in question ; and

(b) retain all such statements for two years ; and

(c) at any time during that period give facilities for their examination by any officer or servant of the local authority authorised in that behalf by the local authority.

(2) The accountant and any servant of his authorised in that behalf by him in writing may at all reasonable times enter any premises on which a registered pool promoter is carrying on his business and enquire into the manner in which that business is being carried on, and may require the registered pool promoter or any servant of his to give to the accountant or servant so authorised all such information and produce all such accounts, books and other documents and carry out such checks or additional checks of coupons or other entry forms as the accountant or servant so authorised may think necessary for the purpose of determining whether there is cause to believe that any of the provisions of this Act are being contravened or not complied with ; and it shall be the duty of the promoter to preserve, or, to such extent as he may prefer to do so, to preserve photographic copies of, all accounts, books or other documents (including coupons or other entry forms) which relate wholly or partly to any of his competitions for at least two months from the day on which the events take place on which that competition depends.

(3) If at any time the accountant has cause to believe that any of the provisions of this Act are being contravened or not complied with in relation to any of the competitions of a registered pool promoter, he shall report the matter to the local authority.

(4) Not later than the end of October in each year the accountant shall furnish to the local authority a report stating, if such be the fact, that he has examined all statements submitted to him by a registered pool promoter under the last preceding section for the period mentioned in subsection (5) of that section which ended in that year, has conducted such enquiries into the manner in which the business of that promoter is carried on and made such examination of that promoter's records as he considers necessary, and has no cause to believe that any of the provisions of this Act have been contravened or not complied with in relation to any of the competitions of that promoter taking place during the said period except in relation to such matters (if any) as have been reported by the accountant in pursuance of subsection (3) of this section.

6.—(1) Nothing in section three of this Act shall prevent the rules of any competition from providing that the competition may be declared void in specified circumstances ; but sections four and five of this Act shall apply in relation to competitions **Void competitions and rejected entries.**

declared void in pursuance of any such provision as they apply in relation to other competitions except that—

- (a) for the statements required by subsections (1) and (2) of the said section four to be sent to the accountant in respect of the competition and to be included in announcements of the results of, or to be sent to competitors in, the competition, there shall be substituted statements that the competition has been declared void and that sums paid as stakes therein will be repaid or credited to the payors thereof ;
- (b) the competition shall be left out of account in computing the percentage a statement of which is required by the said subsection (2) to be included in announcements of the results of, or to be sent to competitors in, other competitions depending on the same events or other events taking place on the same day.

(2) References in this Act to stakes in, or in respect of entries in, any competition do not include references to stakes in respect of rejected entries.

**Ascertainment
of stake
money in
competitions.**

7. Where two or more competitions of the same registered pool promoter are so conducted that entries in all of them can be effected by a person without completing more than a single coupon or other entry form, the promoter may arrive at the total amount of the stakes in respect of the entries in each competition by—

- (a) ascertaining the aggregate total amount of the stakes in respect of the entries in all the competitions ; and
- (b) causing the said aggregate total amount to be apportioned among those competitions by reference to the results of an inspection of samples of the completed coupons or forms,

and if the sampling, inspection and apportionment is such (both as to the process adopted and as to the manner of carrying it out) that the amount apportioned to each competition is not likely to differ from the total amount actually staked therein by more than one per cent., the amount so apportioned to any such competition shall for all the purposes of this Act be deemed to be the total amount actually staked in that competition.

Enforcement.

8.—(1) Any person who—

- (a) carries on any business in contravention of section one of this Act ; or
- (b) obstructs the accountant or any servant of his in the execution of any powers or duties under this Act ; or
- (c) fails to comply with any requirement duly made on him by the accountant or any servant of his, or, in response to such a requirement, knowingly gives any information which is false or misleading,

shall be guilty of an offence under this Act.

(2) If any registered pool promoter fails to comply with any duty imposed upon him by this Act or if any of the provisions of this Act, except so far as they impose duties on the accountant or the local authority, are contravened or not complied with in the case of the business of any registered pool promoter, the registered pool promoter shall be guilty of an offence under this Act.

(3) Section twenty-nine of the Betting and Lotteries Act, 1934 (which relates to offences by bodies corporate) and subsection (1) of section thirty of that Act (which prescribes penalties) shall apply in relation to offences under this Act as they apply in relation to offences under Part II of that Act.

(4) The local authority shall have power to take proceedings for offences under this Act.

9.—(1) Section five of the Betting and Lotteries Act, 1934 (which relates, amongst other things, to the power of county and county borough councils to delegate their functions under that Act), shall apply in relation to the functions of county and county borough councils under this Act as it applies in relation to their functions under that Act.

Power of councils to delegate their functions.

(2) Any sum received under this Act by a standing joint committee in pursuance of such a delegation shall be paid or accounted for to the county council represented on the committee.

10.—(1) The Ready Money Football Betting Act, 1920, shall cease to have effect as respects any pool betting business carried on by post by a registered pool promoter.

Legalisation of ready money pool betting carried on by post.

(2) Section one of the Betting Act, 1853, so far as it relates to the opening, keeping or using of houses, offices, rooms or other places for the receipt of money, shall not apply in relation to pool betting business carried on by post by a registered pool promoter.

11.—(1) In this Act "bets made by way of pool betting" has the same meaning as it has for the purposes of section six of the Finance (No. 2) Act, 1947, and subsection (5) of that section, section fourteen of the Finance Act, 1948, section seventeen of the Finance Act, 1950, and section four of the Finance Act, 1952, shall apply accordingly, and "pool betting business" means a business involving the receiving or negotiating of bets made by way of pool betting:

Application and interpretation of Act.

Provided that nothing in this Act shall apply to—

- (a) any bets depending wholly on events taking place before the end of the year nineteen hundred and fifty-four; or

- (b) any bets made or to be made by means of a totalisator operated on an approved racecourse within the meaning of the Racecourse Betting Act, 1928, or on a licensed track as defined in subsection (1) of section twenty of the Betting and Lotteries Act, 1934,

and "bets made by way of pool betting" and "pool betting business" shall be construed accordingly.

(2) In this Act "qualified auditor" means a person who is a member, or a firm all of the partners wherein are members, of one or more of the following bodies:—

- (a) The Institute of Chartered Accountants in England and Wales;
- (b) The Society of Incorporated Accountants and Auditors;
- (c) The Institute of Chartered Accountants of Scotland;
- (d) The Association of Certified and Corporate Accountants;
- (e) The Institute of Chartered Accountants in Ireland;
- (f) any other body of accountants established in the United Kingdom and for the time being recognised for the purposes of paragraph (a) of subsection (1) of section one hundred and sixty-one of the Companies Act, 1948, by the Board of Trade.

(3) Any reference in this Act to the day on which the events on which a competition depends take place shall, where the events do not take place wholly on the same day, be construed as a reference to the last day on which any of the events take place.

(4) In this Act, "the promoter's commission" means, in respect of any pool betting business, the amount by which the aggregate total stakes in all the competitions exceeds the sum of—

- (a) the aggregate prizes in the competitions; and
- (b) the aggregate pool betting duty payable in respect of the competitions; and
- (c) the expenses of the promoter actually incurred by him in the conduct of the competitions, excluding any expenses properly chargeable to capital and any interest on borrowed money, and, in particular, excluding any provision for depreciation of buildings or equipment, any emoluments payable to the promoter or, if the promoter is a partnership, to any of the partners, or, if the promoter is a body corporate, to any of the directors, and in any case, any emoluments payable to any person whose emoluments depend to any extent on the profits of the promoter.

12.—(1) The foregoing provisions of this Act, in their application to Scotland, shall have effect subject to the following modifications—

- (a) For any reference to a county borough there shall be substituted a reference to a large burgh, and for any reference to a court of quarter sessions there shall be substituted a reference to the sheriff;
- (b) For subsection (5) of section one there shall be substituted the following subsection—

“(5) Where registration has been refused or revoked under this section the local authority shall forthwith notify the person in question of the refusal or revocation and he may appeal, in accordance with such rules as to notice and otherwise as may be made by the Court of Session by act of sederunt, to the sheriff having jurisdiction in the area in which the place or principal place at which the person carries on or is intending to carry on his business is situate, and on any such appeal the decision of the sheriff shall be final and may include such order as to the expenses of the appeal as he thinks proper.”;

and

- (c) Subsection (4) of section eight (which empowers the local authority to take proceedings) shall be omitted.

(2) For the purposes of this Act in its application to Scotland a county shall be deemed to include any small burgh, and not to include any large burgh, situate therein, and section one hundred and eighteen of the Local Government (Scotland) Act, 1947 (which relates to the combination of certain counties for certain purposes) shall have effect accordingly.

(3) In this Act in its application to Scotland the expressions “small burgh” and “large burgh” have the like meanings as in the Local Government (Scotland) Act, 1947.

(4) The power conferred on the Court of Session by subsection (5) of section one of this Act, in its application to Scotland, shall be exercisable by statutory instrument, and the Statutory Instruments Act, 1946, shall apply to a statutory instrument by which the power is exercised as if the power had been conferred on a Minister of the Crown.

13.—(1) This Act may be cited as the Pool Betting Act, 1954. Short title
and extent.

(2) This Act shall not extend to Northern Ireland.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Quarter Sessions Act, 1849	12 & 13 Vict. c. 45.
Betting Act, 1853	16 & 17 Vict. c. 119.
Ready Money Football Betting Act, 1920 ...	10 & 11 Geo. 5. c. 52.
Racecourse Betting Act, 1928	18 & 19 Geo. 5. c. 41.
Summary Jurisdiction (Appeals) Act, 1933 ...	23 & 24 Geo. 5. c. 38.
Betting and Lotteries Act, 1934	24 & 25 Geo. 5. c. 58.
Statutory Instruments Act, 1946	9 & 10 Geo. 6. c. 36.
Local Government (Scotland) Act, 1947... ..	10 & 11 Geo. 6. c. 43.
Finance (No. 2) Act, 1947	11 & 12 Geo. 6. c. 9.
Companies Act, 1948	11 & 12 Geo. 6. c. 38.
Finance Act, 1948	11 & 12 Geo. 6. c. 49.
Finance Act, 1950	14 Geo. 6. c. 15.
Finance Act, 1952	15 & 16 Geo. 6. & 1 Eliz. 2. c. 33.

CHAPTER 34

An Act to amend section four of the Statute of Frauds, 1677; and to repeal section four of the Sale of Goods Act, 1893. [4th June, 1954]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Amendment
of s. 4 of the
Statute of
Frauds, 1677.
29 Car. 2. c. 3.

1. In section four of the Statute of Frauds, 1677, the words "whereby to charge any executor or administrator upon any special promise to answer damages out of his own estate; or", the words "or to charge any person upon any agreement made upon consideration of marriage" and the words "or upon any agreement that is not to be performed within the space of one year from the making thereof" are hereby repealed in relation to any promise or agreement, whether made before or after the commencement of this Act.

Repeal of s. 4
of the Sale of
Goods Act,
1893.
56 & 57 Vict.
c. 71.

2. Section four of the Sale of Goods Act, 1893, is hereby repealed in relation to any contract, whether made before or after the commencement of this Act.

Short title
and extent.

3.—(1) This Act may be cited as the Law Reform (Enforcement of Contracts) Act, 1954.

(2) This Act shall not extend to Northern Ireland.